



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

April 2, 2009

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 14825

EXPIRATION DATE: June 30, 2009

1. GRANTEE: Estes-Cox Corporation
Penrose, CO
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one-way transportation in commerce of small "single-use expendable" or "reloadable" rocket motor kits that were originally approved as Division 1.4C or 1.4S and authorized for reclassification to Division 4.1 flammable solid articles under DOT-SP 7887, except that the segregation requirements between the rocket motors and their igniters are not met.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101, 172.202, 172.301, 172.401, 174.3, 175.3, 176.3 and 177.801 in that the model rocket motors specified in this special permit which are classed as Division 1.4C or 1.4S and the igniters specified in this special permit which are classed as 1.4G or 1.4S may be shipped together as Division 4.1

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articles, and § 173.61(a) in that the model rocket motor and igniters may be shipped in the same outside packaging as prescribed in this special permit.

5. BASIS: This emergency special permit is based on the application of Estes-Cox Corporation dated March 20, 2009, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable solids, organic, n.o.s. (Model rocket kits containing motors with or without un-installed igniters)	4.1	UN1325	II

7. SAFETY CONTROL MEASURES:

- a. As required by DOT-SP 7887.
- b. Transportation must be by private or contract carrier.
- c. Transportation is authorized one-time, one-way only for return to Estes-Cox Corp.
- c. PACKAGING - The single-use expendable type rocket motors are be packed in an outer packaging without inner or intermediate packagings further packed in a UN 4G fiberboard box.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit, and the HMR.

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- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The model rocket kits authorized under this special permit and DOT-SP 7887 may be shipped in the same outer packaging with non-hazardous materials needed to construct model rockets.
- d. The authorization to grant the relief provided within this special permit is limited to the extent that the United States government has authority over the transportation of the articles subject to this special permit. Transportation in accordance with this special permit outside the United States may require the approval of governments of countries where these articles are so transported.
- e. Packages shipped under this special permit may not be offered for transportation as Consumer Commodities, ORM-D.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit and DOT-SP 7887 must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: HERZOGK